

Vinod Kumar Singh vs Poonam Chauhan on 28 November, 2019

Bench: Bala Krishna Narayana, Rohit Ranjan Agarwal

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 4

Case :- FIRST APPEAL No. - 795 of 2019

Appellant :- Vinod Kumar Singh

Respondent :- Poonam Chauhan

Counsel for Appellant :- Lalta Prasad, Prabhat Kumar Singh

Hon'ble Bala Krishna Narayana, J.

Hon'ble Rohit Ranjan Agarwal, J.

Heard learned counsel for the appellant.

This appeal at the instance of appellant Vinod Kumar Singh is directed against the order dated 31.10.2019 passed by Principal Judge, Family Court, Ghazipur in Matrimonial Case No. 120/2018 (Vinod Kumar Singh Vs. Poonam Chauhan) by which he has allowed the application 7? filed by the respondent u/s 24 of the Hindu Marriage Act, 1955, in part and has directed the appellant to pay a sum of Rs. 3,000/- per month as interim maintenance and Rs. 10,000/- towards litigation expenses to the respondent.

Learned counsel for the appellant has submitted that the appellant is unemployed and moreover, the respondent having left the company of the appellant voluntarily on her own sweet will, she is not entitled to any interim maintenance.

Having heard learned counsel for the appellant and perused the impugned order as well as other material brought on record, we do not find that the impugned order suffers from any error, illegality

or legal infirmity requiring any interference by this Court. In these days when the cost of living is so high, award of Rs. 3,000/- per month as interim maintenance by no stretch of imagination can be termed arbitrary or excessive. Hence, no interference with the impugned order is warranted.

However, considering the peculiar facts and circumstances of the case, we direct the Principal Judge, Family Court, Ghazipur to make every possible endeavour to decide the Matrimonial Case No. 120/2018 (Vinod Kumar Singh Vs. Poonam Chauhan), as expeditiously as possible, preferably within a period of six months from the date of filing of certified copy of this order before him without granting unnecessary adjournments to either of the parties.

Subject to aforesaid observations, this appeal is disposed of finally.

Order Date :- 28.11.2019 KS